Summary
Board Bill Number 21
Sponsored by Alderwoman Jami Cox Antwi
May 8, 2026

This Board Bill amends Ordinance 66935 and authorizes the execution of a Second Amendment Lease Agreement between The City of St. Louis, Missouri (the "City") and Material Sales Company ("Lessee") for certain land and mooring between the MacArthur Bridge and the Poplar Street Bridge under certain terms and conditions for a period of (5) years, at a rate of $17,812.72 for the first year and increasing by three (3) percent each year thereafter.

BOARD BILL NUMBER 21 INTRODUCED BY ALDERWOMAN JAMI COX ANTWI

An Ordinance amending Ordinance No. 66935, which ordinance relates to an original Lease Agreement dated January 1, 2006, between The City of St. Louis, Missouri (the "City") and Material Sales Company ("Lessee"), and authorizing the execution of a Second Amendment to Lease Agreement between the City and Lessee for certain land and mooring between the MacArthur Bridge and the Poplar Street Bridge under certain terms and conditions as set forth in the Second Amendment, attached hereto as **Exhibit A**, and containing a severability clause.

WHEREAS, the City, by Ordinance No. 66935, did lease to Lessee beginning on January 1, 2006 for certain land and mooring at or near the north side of MacArthur Bridge and a point Three Hundred feet (300') south of the Poplar Street Bridge; and

WHEREAS, the City, by Ordinance No. 71384, did authorize an extension of the Lease until December 31, 2025; and

WHEREAS, the City and Lessee desire to enter into a Second Amendment to Lease Agreement for the final five (5) year mutual option under certain terms and conditions with a base rent of $17,812.72 for 2026 subject to a 3% annual adjustment as set forth in **Exhibit A** hereto.

BE IT ORDAINED BY THE CITY OF ST. LOUIS AS FOLLOWS:

SECTION ONE. Ordinance No. 66935is hereby amended to provide for a Second Amendment to Lease Agreement with Lessee for certain land and mooring at or near the north side of MacArthur Bridge and a point Three Hundred feet (300') south of the Poplar Street Bridge for a period of five (5) years at a rate of 17,812.72 for 2026 subject to a 3% annual adjustment as set forth in **Exhibit A** hereto.

SECTION TWO. The Board of Aldermen hereby approves, and the Mayor and Comptroller are hereby authorized to execute, on behalf of the City, said Second Amendment to Lease Agreement.

SECTION THREE. The Mayor and Comptroller or their designated representatives are hereby authorized to take any and all actions, and to execute and deliver for and on behalf of the City any and all additional certificates, documents, agreements or other instruments, as may be necessary and appropriate in order to carry out the matters herein authorized, with no such further action of the Board of Aldermen necessary to authorize such action by the Mayor and Comptroller or their designated representatives.

SECTION FOUR. The Mayor and Comptroller or their designated representatives, with the advice and concurrence of the City Counselor and the Port Commission, are hereby further authorized to make any changes to the documents, agreements and instruments approved and authorized by this Ordinance as may be consistent with the intent of this Ordinance and necessary and appropriate in order to carry out the matters herein authorized, with no such further action of the Board of Aldermen necessary to authorize such changes.

SECTION FIVE. It is hereby declared to be the intention of the Board of Aldermen that each and every part, section and subsection of this Ordinance shall be separate and severable from each and every other part, section and subsection hereof and that the Board of Aldermen intends to adopt each said part, section and subsection separately and independently of any other part, section and subsection. In the event that any part, section or subsection of this Ordinance shall be determined to be or to have been unlawful or unconstitutional, the remaining parts, sections and subsections shall be and remain in full force and effect, unless the court making such finding shall determine that the valid portions standing alone are incomplete and are incapable of being executed in accord with the legislative intent.

SECTION SIX. After adoption of this Ordinance by the Board of Aldermen, this Ordinance shall become effective on the 30th day after its approval by the Mayor or adoption over her veto.

FISCAL NOTE
BOARD BILL NUMBER 21

Preparer's Name ____*Cheryl Campbell*________________

Phone Number or Email Address (will be available publicly) _____campbellch@stlouis-mo.gov_

Bill Sponsor _*Alderwoman Jami Cox Antwi*_____________

Bill Synopsis:	*An ordinance amending Ordinance No. 66935 to authorize the execution of a Second Amendment to a Lease Agreement between the City of St. Louis and Material Sales Company for certain land and mooring for a five-year period, with an initial annual rent of $17,812.72 in 2026 subject to a 3% annual increase.*
Type of Impact:	*Positive (Revenue-Generating Lease Agreement)*
Agencies Affected:	*Port Authority / Port Commission;* *Comptroller's Office;* *Mayor's Office.*

SECTION A
Does this bill authorize:

- An expansion of services which entails additional costs beyond that approved in the current adopted city budget? ____Yes ____*X* No
- An undertaking of a new service for which no funding is provided in the current adopted city budget? ____Yes ____*X* No
- A commitment of city funding in the future under certain specified conditions? __*X*__Yes __No
- An issuance of bonds, notes and lease-purchase agreements which may require additional funding beyond that approved in the current adopted city budget? ____Yes ____*X* No
- An execution or initiation of an activity as a result of federal or state mandates or requirements? ____Yes ____*X* No

- A capital improvement project that increases operating costs over the current adopted city budget? ____Yes ____*X*No

- A capital improvement project that requires funding not approved in the current adopted city budget or that will require funding in future years? ____Yes ____*X*No

If the answer is yes to any of the above questions, then a fiscal note must be attached to the board bill. Complete Section B of the form below.

SECTION B

- Does the bill require the construction of any new physical facilities? ____Yes __*X*__No

  - If yes, describe the facilities and provide the estimated cost:

  ____

  ____

- Is the bill estimated to have a direct fiscal impact on any city department or office? _*X*___Yes ____No

  - If yes, explain the impact and the estimated cost:

This bill generates revenue to the City through lease payments from Material Sales Company. The lease provides an initial annual payment of $17,812.72 in 2026 with a 3% annual escalation over the five-year term.

- Does the bill create a program or administrative subdivision? ____Yes __*X*__No

  - If yes, then is there a similar existing program or administrative subdivision? ____Yes ____No
  - If yes, explain the how the proposed programs or administrative subdivisions may overlap:

  ____

  ____

- Describe the annual operating, equipment, and maintenance costs that would result from the proposed bill, as well as any funding sources:

The Board Bill does not identify any additional operating, equipment, or maintenance costs to the City associated with the lease amendment. The agreement results in annual lease revenue to the City beginning at $17,812.72 in Year 1 (2026), with a 3% annual increase over the five-year term. No specific fund designation is identified in the Board Bill language; revenue is assumed to be deposited in accordance with existing City financial practices.

Complete the chart below to list the total estimated expenditures required of the City resulting from the proposed board bill and any estimated savings or additional revenue.

Financial Estimate of Impact on General Fund			
Fiscal Impact	**Year 1 (current)**	**Year 2**	**Year 3**
Additional Expenditures	*$0*	*$0*	*$0*
Additional Revenue	*$17,812.72*	*$18,347.10*	*$18,897.51*
Net	*$17,812.72*	*$18,347.10*	*$18,897.51*

Financial Estimate of Impact on Special Funds			
Fiscal Impact	**Year 1 (current)**	**Year 2**	**Year 3**
Additional Expenditures	*$0*	*$0*	*$0*
Additional Revenue	*$0*	*$0*	*$0*
Net	*$0*	*$0*	*$0*

- Describe any assumptions used in preparing this fiscal note:

This fiscal note was prepared based on review of the language contained within the Board Bill. The lease terms specify a base rent with a defined annual escalation; no additional costs, staffing requirements, or administrative impacts are detailed in the Board Bill language.

- List any sources of information (including any City officials, agencies, or departments) used in preparing this fiscal note:

Board Bill – PIN 36 (Material Sales) Lease Amendment
Summary and supporting documentation submitted with the Board Bill

- Have the financial estimates of this bill been verified by the City Budget Division?

____Yes __*X*__No

  - If yes, by whom? ________________________________ .